

BUENO | PROPERTY SIMPLIFIED

A CHECKLIST FOR INTERNATIONAL BUYERS

Buying a home in Spain, one clear step at a time.

This checklist takes you from your first offer to your first year as an owner. Tick each step off as you go, and share it with your agent and lawyer so everyone is working from the same list.

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This checklist was shared with you by _____

01 Before you make an offer

Weeks before you view seriously

- [ ] **Get your NIE.** This is your foreigner's identification number, and you need it to buy, to pay tax and to open an account in Spain. You can apply at a Spanish consulate at home or in person at a police station in Spain.
- [ ] **Open a Spanish account.** The notary and the seller will expect payment from a Spanish account with a Spanish IBAN or by banker's draft, and your bills will be paid from it afterwards.
- [ ] **Set your full budget.** Taxes and fees usually add another 10 to 15% on top of the price, so work that into your budget from the start. Section 4 shows where the money goes.
- [ ] **Get a mortgage approval in principle if you are borrowing.** Spanish lenders usually lend non-residents 60 to 70% of the value, so you will need a larger deposit than you might at home.
- [ ] **Decide whose name the property will be in.** One name, joint names or a company each lead to different tax and inheritance results later, so take advice before you sign anything.

02 Checks on the property

Your lawyer does most of these

- [ ] **Get the Nota Simple from the Land Registry.** It shows who legally owns the property, its registered size and any mortgage or charge against it.
- [ ] **Check for debts that stay with the property.** Unpaid IBI property tax, rubbish tax and community fees can pass to the new owner, so ask for the latest receipts and a certificate from the community of owners.
- [ ] **Make sure the property matches its paperwork.** Extensions, pools or rooms that were never registered can cause problems with the notary, the bank and a future sale.
- [ ] **Check the licences on new builds and rural homes.** Ask for the first occupation licence or habitability certificate, and confirm the building licence was followed.
- [ ] **Read the community rules for apartments and gated developments.** They can limit holiday lets, pets and renovations.
- [ ] **Order a survey or independent valuation** if you have any doubt about the condition of the property.

03 Contracts and deposits

Where your money is first at risk

- [ ] **Hire your own independent lawyer.** Choose one who does not work for the seller or the developer, and let them run the checks in section 2.
- [ ] **Sign the reservation agreement if there is one.** A deposit of around 3,000 to 6,000 euros takes the property off the market while the checks are done.
- [ ] **Sign the private purchase contract, known as the contrato de arras.** You usually pay 10% of the price here. If you pull out you normally lose that deposit, and if the seller pulls out they normally pay you back double.
- [ ] **Agree the completion date and conditions in writing,** including what happens if your mortgage or any document is late.

04 The costs on top of the price

Typical figures, which vary by region

Transfer tax (ITP) on a resale home The rate is set by each region and can rise for more expensive homes.	**About 6 to 13%**
VAT (IVA) on a new build Stamp duty (AJD) is added on top, at a rate set by the region.	**10% plus AJD**
Notary fees	**About 0.2 to 0.5%**
Land Registry fees	**About 0.1 to 0.25%**
Lawyer's fees	**About 1 to 1.5% plus VAT**
Mortgage valuation and arrangement fees These only apply if you are borrowing.	**Varies by lender**

A simple rule of thumb: set aside an extra 10 to 15% of the purchase price for taxes and fees, and ask your lawyer for an exact figure once you know the property.

05 Completion day

At the notary's office

- [ ] **Sign the escritura, the title deed, in front of the notary.** You can attend yourself, or someone you have given power of attorney can sign for you.
- [ ] **Pay the balance, taxes and fees.** Your lawyer will tell you the exact amounts and how each one is paid.
- [ ] **Hold back 3% if the seller is not tax resident in Spain.** You pay that 3% to the tax office on Modelo 211 within one month, as an advance on the seller's tax. It is not an extra cost for you.
- [ ] **Collect your keys and a copy of the signed deed.**
- [ ] **Have the deed registered at the Land Registry.** Your lawyer or gestor normally handles this. It can take a few weeks, and it is what fully protects your ownership.

06 Your first year as an owner

The part most buyers forget

- [ ] **Put the bills in your name.** Set up direct debits for electricity, water, IBI property tax, rubbish tax and community fees.
- [ ] **Take out home insurance.** Your lender will require building insurance if you have a mortgage.
- [ ] **Check your tax residency with an adviser.** Whether you count as resident in Spain decides which returns you file and where.
- [ ] **File Modelo 210 every year if you are not resident.** Non-resident owners pay a yearly income tax on their Spanish home even when it is never rented out.
- [ ] **Update your will to cover the Spanish property.** Spanish inheritance rules can work differently from those in your home country.

+ The questions foreign buyers ask most

Will Spain really charge foreign buyers a 100% tax?

Not today. The government proposed it in January 2025 for buyers who live outside the EU, but it has not been passed by Congress and it is not law. Buyers currently pay the same purchase taxes as everyone else.

Do I pay tax on a home I never rent out?

Yes, if you are not resident in Spain. Each year you file Modelo 210 on a notional income worked out from the property's cadastral value. The rate is 19% for EU and EEA residents and 24% for everyone else, and the return for each year is due by 31 December of the following year.

Can I rent the property out to holiday guests?

It depends on the region, the town and the building. Holiday lets need a tourist licence from the region, and since April 2025 a new holiday let in an apartment block needs the approval of three fifths of the community of owners. Check before you count on any rental income.

Why is 3% of the price being held back at the notary?

When the seller is not tax resident in Spain, the buyer must hold back 3% and pay it to the tax office on the seller's behalf. It comes out of the price, so it does not cost the buyer anything extra.

Who helps me once I have the keys?

Bueno helps foreign owners run their Spanish home, with a Spanish account, yearly tax returns, insurance and a professional team you can reach by phone, WhatsApp, chat or email in your own language. You can find out more at getbueno.com.

This checklist is a general guide based on the rules in force in October 2026. It is not personal legal or tax advice, so please confirm each step with your own lawyer or tax adviser.

FOR ESTATE AGENTS

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